

HOUSE No. 71**The Commonwealth of Massachusetts**

PRESENTED BY:

Natalie M. Blais and Hannah Kane*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying proposal for constitutional amendment:

Proposal for a legislative amendment to the Constitution relative to agricultural and horticultural lands.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>1/16/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/22/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/25/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>1/25/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>1/25/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/6/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>2/6/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/6/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/6/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/13/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/24/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>3/3/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>3/3/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>3/14/2025</i>
<i>Donald H. Wong</i>	<i>9th Essex</i>	<i>3/19/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>3/26/2025</i>

<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>3/26/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>4/10/2025</i>
<i>Carmin Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>4/10/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>4/10/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>4/24/2025</i>

HOUSE No. 71

By Representatives Blais of Deerfield and Kane of Shrewsbury, a petition (accompanied by proposal for constitutional amendment, House, No. 71) of Natalie M. Blais, Hannah Kane and others for a legislative amendment to the Constitution relative to agricultural and horticultural lands. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Proposal for a legislative amendment to the Constitution relative to agricultural and horticultural lands.

A majority of all the members elected to the Senate and House of Representatives, in joint session, hereby declares it to be expedient to alter the Constitution by the adoption of the following Article of Amendment, to the end that it may become a part of the Constitution [if similarly agreed to in a joint session of the next General Court and approved by the people at the state election next following]:

ARTICLE OF AMENDMENT.

1 Article XCIX of the Amendments to the Constitution is hereby annulled, and the
2 following is adopted in place thereof:-

3 Article XCIX. Full power and authority are hereby given and granted to the general court
4 to prescribe, for the purpose of developing and conserving agricultural or horticultural lands, that
5 such lands shall be valued, for the purpose of taxation, according to their agricultural or
6 horticultural uses; provided, that the parcel has been actively devoted to agricultural or
7 horticultural uses for the 2 years preceding the tax year; and provided further, that no law shall

- 8 be passed that requires a parcel of land to be greater than 5 acres in area to be valued at less than
- 9 fair market value under this article.